

Stay of CGRF order on Tatkal Yojana permanent connection

High Court of Judicature at Allahabad · Division Bench · 8 January 2014 · WRIT - C No. 644 of 2014 · **CGRF order stayed; notice issued; writ listed for admission**

HEADNOTE

On a distribution licensee's writ against a CGRF, Aligarh order, the High Court issued notice and stayed the Forum's order dated 24.08.2013. The licensee contended that clause 4.11 of the U.P. Electricity Supply Code, 2005 permits only a temporary connection under the Tatkal Yojana and that a permanent connection under that scheme is not permissible. The Court recorded that the contention required consideration and listed the writ for admission. No decision on the merits was given.

FACTUAL SUMMARY

Dakshinanchal Vidyut Vitran Nigam Ltd. challenged an order dated 24 August 2013 of the Consumer Grievance Redressal Forum, Aligarh, relating to Smt. Meera Varshney's application for a permanent electricity connection under the Tatkal Yojana. The licensee contended that clause 4.11 of the U.P. Electricity Supply Code, 2005 permits only a temporary connection under that scheme. The Court issued notice, stayed the Forum's order, and listed the writ for admission. In 2018 two weeks were granted to file a rejoinder.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

interlocutory stay of CGRF order pending admission

HOLDING

Recording the licensee's contention that clause 4.11 of the U.P. Electricity Supply Code, 2005 permits only a temporary connection under the Tatkal Yojana and that a permanent connection is not permissible, the Court held that the point required consideration, issued notice, stayed the CGRF, Aligarh order dated 24.08.2013, and listed the writ for admission. A later listing granted time to file a rejoinder. The merits of clause 4.11 were not decided. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 4.11 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 PERMITS ONLY A TEMPORARY CONNECTION UNDER THE TATKAL YOJANA, AND WHETHER A PERMANENT CONNECTION UNDER THAT SCHEME CAN BE GRANTED.

The Court recorded that the contention requires consideration and listed the writ for admission, without deciding the clause. ¶ 1